

**DRAFT - Meeting date/time, Bank of India representative email, and suspended directors' details to be inserted before issue.**

## **Notice of First Meeting of Committee of Creditors**

**Of**

**Mahakali Foods Private Limited**

**(Under Corporate Insolvency Resolution Process)**

Notice along with Agenda, Notes to Agenda, resolutions which are proposed to be passed in the meeting and the explanatory statements to the said resolutions for the First Meeting of the Committee of Creditors of Mahakali Foods Private Limited (under Corporate Insolvency Resolution Process) under the provisions of the Insolvency and Bankruptcy Code, 2016 read with Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016.

Day & Date: [DAY & DATE OF FIRST COC MEETING]

Time: [TIME]

Mode: Video Conferencing through Google Meet

*Please note that the link for joining meeting along with its instructions shall be sent separately via email.*

Date: [DATE OF NOTICE]

Place: Indore (M.P)

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**Of**  
**Mahakali Foods Private Limited**  
**(Under Corporate Insolvency Resolution Process)**

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## **Notice of First Meeting of Committee of Creditors**

**Of**

**Mahakali Foods Private Limited**

**(Under Corporate Insolvency Resolution Process)**

**NOTICE is hereby given that in accordance with the provisions of regulation 18, 19, 20 of The Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the first meeting of COC of Mahakali Foods Private Limited will be held on [DATE OF FIRST COC MEETING] at [TIME] to transact the following business as specified in the enclosed Agenda.**

The participants may also attend the Meeting through video conferencing or other audio and visual means. Any participant intending to attend the Meeting through such means, is requested to give us prior written intimation at [cirp.keshav@gmail.com](mailto:cirp.keshav@gmail.com), of your intention to attend the Meeting through such means, along with the relevant details of the location, login details etc., at least 48 (forty-eight) hours before the time fixed for the Meeting, so that necessary arrangements can be made. It is to be noted that the participants attending the Meeting through video conferencing or other audio and visual means would also be considered as part of quorum for the Meeting.

As per Regulation 21(2) of the Regulations a member of the CoC may attend the Meeting either in person or through an authorised representative. A member of the CoC attending through an authorised representative, shall inform us at least [48 (forty-eight) hours] in advance, of the identity of the authorised representative who will attend and vote at the Meeting on its behalf. The authorised representative is requested to carry an Identity Card for its identification. Kindly note that each member of the CoC (other than creditors under Section 21 (6A) (b) of the Insolvency and Bankruptcy Code, 2016) must be represented in the CoC by such persons who are competent and are authorised to take decisions on the spot and without deferring decisions for want of any internal approval from the financial creditors.

In terms of the Proviso to Section 21(2) of the Insolvency and Bankruptcy Code, 2016, a related party to whom the Corporate Debtor owes a financial debt shall not have any right to representation, participation and voting in Meeting of CoC.

Kindly make it convenient to attend the Meeting.

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**Navin Khandelwal**

IRP of Mahakali Foods Private Limited

(A Corporate Debtor under CIRP pursuant to NCLT order dated 31.07.2026)

**Reg No: IBBI/IPA-1/P00703/20172018/11301**

AFA Valid: 31-12-2026

Email ID: [cirp.keshav@gmail.com](mailto:cirp.keshav@gmail.com)

Registered with IBBI: navink25@yahoo.com

### **Parties to whom Notice Served**

**Notice along with all enclosures sent through e-mail, to the following:**

Member of CoC comprising of Financial Creditors to whom the notice of this meeting served

| S. No. | Name of the Creditors             | Claim Admitted (₹) | % of claim in CoC | Email ID                                 |
|--------|-----------------------------------|--------------------|-------------------|------------------------------------------|
| 1      | Samunnati Finance Private Limited | 60,855,576.00      | 52.7163%          | vasudevan.s@samunnati.com                |
| 2      | Bank of India                     | 54,584,244.48      | 47.2837%          | [BANK OF INDIA COC REPRESENTATIVE EMAIL] |
|        | Total                             | 115,439,820.48     | 100.0000%         |                                          |

Members of Suspended Board of Directors of Mahakali Foods Private Limited (Corporate Debtor)

| S.No | Name of Suspended Director & Compliance Officer | Email                                           |
|------|-------------------------------------------------|-------------------------------------------------|
| 1    | [NAME OF SUSPENDED DIRECTOR 1]                  | <a href="#">[EMAIL OF SUSPENDED DIRECTOR 1]</a> |
| 2    | [NAME OF SUSPENDED DIRECTOR 2]                  | <a href="#">[EMAIL OF SUSPENDED DIRECTOR 2]</a> |

## **Agenda for the meeting**

### **List of the matters to be discussed at the meeting**

1. The Interim Resolution Professional (“IRP”) to take the chair.
2. To conduct roll call of all the participants/ authorized representatives including those attending through video conferencing or other audio/video means.
3. To ascertain the quorum of the Meeting in accordance with the provisions of Regulation 22 of the Regulations.
4. To appraise the participants regarding the report filed in relation to the constitution of CoC as per section 21 of the IBC 2016 and provide the voting shares of each financial creditor as per the verified/admitted claims till the date of the Meeting.
5. To take note of the list of creditors who have submitted their claims and the status of verification of such claims.
6. To update the participants on the activities undertaken by the IRP in terms of section 17 and 18 of the IBC 2016 to manage the affairs of Corporate Debtor from the date of receipt of the CIRP commencement order till the date of the Meeting.
7. To present the state of affairs of the Corporate Debtor from the date of receipt of the CIRP commencement order till the date of the Meeting.
8. To discuss and ratify the remuneration to be paid to the IRP and expenses incurred till the date of the Meeting which shall be treated as CIRP expenses as per Regulation 34 of the CIRP Regulation 2016.
9. To discuss the proposal of the appointment of Mr. Navin Khandelwal, the IRP as the Resolution Professional (“RP”) of the Corporate Debtor and his remuneration as per regulation 34B of the CIRP Regulation 2016.
10. To approve for opening of a process specific current account with IDFC First Bank for carrying out day-day to transactions for running the CIRP.
11. To reduce notice period to call for meeting of committee of creditors accordance with provisions of Regulations 19 of CIRP Regulations 2016.
12. Any other matter with the permission of Chair.

### **List of the issues to be voted upon at the meeting**

1. To approve the appointment of Mr. Navin Khandelwal, the IRP as the Resolution Professional (“RP”) of the Corporate Debtor as per section 22 of the IBC 2016 and its remuneration as the RP as per regulation 34B of the CIRP Regulation 2016.
2. To ratify and reimburse the expenses incurred by the IRP from commencement of CIRP till the date of meeting & the cost of incurred will be treated as CIRP cost under regulation 34 of the CIRP regulation 2016.
3. To reduce the notice period to call the meetings of committee of creditors from minimum of 5 days to minimum 24 hours pursuant regulation 19 (2) of Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016
4. To approve for opening of a process specific current account with IDFC First for carrying out day-day to transactions for running the CIRP.
5. Any other actions requiring approval of CoC as per section 28, to the extent applicable.

## **Instructions For E-Voting**

**START AND END TIME:** The voting period will begin on XXXX and ends on XXXX. During this period, the members of the Committee of Creditors are being provided the platform to cast their vote electronically.

**WEBSITE LINK TO VOTE:** The participating members of the Committee of Creditors should log on to the e-voting website <https://dev.claim-bridge.com/otlogin> login during the voting period.

**LOGIN by OTP:** Enter your mobile or email id. Kindly ensure you use the same mobile number or Email id as notified to the IRP for e-Voting.

You will also receive an INVITE e-mail from **Claim-Bridge** on the registered email id and mobile number with the same link <http://intellicitycirp.com/otp> login).

**PASSWORD:** Enter your mobile number or Email id and click on submit button. Your unique OTP (One Time Password) would be delivered on your mobile number and registered email. Once you enter the OTP click on confidentiality agreement button and Submit you would be logged in to voting platform.

**VOTING:** Once logged in, you would go to voting's and click on it. Here you would see the voting from the <company / IRP> listed. Click on the event name i.e <Vote here> and you would be taken to voting page.

**OPTIONS:** On the voting page, you will see all the items to be voted upon. Against each item, following options would be available:

YES  
NO  
ABSTAIN

**CONFIRMATION:** After selecting the option, click on “SUBMIT”. You would receive a “THANK YOU” message on the screen. This is a confirmation that your vote has been recorded and also receives a confirmation note on registered email and mobile.

**CONTACT US:** In case you have any queries or issues regarding e-voting, write an email to [cirp.mahakalifoods@gmail.com](mailto:cirp.mahakalifoods@gmail.com).

## Notes to Agenda

1. As per provisions of Regulation 13(2) of The Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, (**"CIRP Regulations"**), the list of creditors is available for inspection at the project specific office of the Interim Resolution Professional, i.e. 206, Navneet Plaza, 5/2 Old Palasia, Indore 452018
2. As per section 5 (27) of Insolvency and Bankruptcy Code, 2016 (**"Code"**), 2016 "resolution professional", for the purposes of this Part (i.e. Part II), means an insolvency professional appointed to conduct the corporate insolvency resolution process and includes an interim resolution professional.
3. As per Regulation 21(2) of the CIRP Regulations, a Participant may attend the Meeting either in person or through an Authorised Representative. A Participant attending through an Authorised Representative, shall inform the signatory of the Notice, at least 24 hours in advance, the identity of the Authorised Representative who will attend and vote at the Meeting on its behalf. An indicative format for intimation of identity details of authorised representative for the aforesaid purpose is attached as **"Annexure A"** to this notice. The Authorised Representative is requested to carry an Identity Card for his/her identification.
4. As per provisions of Section 24(5) Subject to sub-sections (6), (6A) and (6B) of section 21, any creditor who is a member of the committee of creditors may appoint an insolvency professional other than the resolution professional to represent such creditor in a meeting of the committee of creditors: Provided that the fees payable to such insolvency professional representing any individual creditor will be borne by such creditor.
5. As per provisions of Section 24 of the Code, a participant being a member of committee of creditors shall only be entitled to vote at the Meeting or by electronic means. The Directors of the Corporate Debtor and representatives of the Operational Creditor(s), if any, attending the Meeting shall not have any right to vote at the Meeting and shall not form a part of the quorum. A Financial Creditor being a related party of the Corporate Debtor shall not have any right of representation, participation or voting in the Meeting.
6. As per provisions of Regulation 22 (2) of the CIRP Regulations, where a meeting of the committee could not be held for want of quorum, unless the committee has previously decided otherwise, the meeting shall automatically stand adjourned at the same time and place on the next day. In the event a meeting of the committee is adjourned, the adjourned meeting shall be quorate with the members of the committee attending the meeting.

7. As per provisions of Section 21 (8) of the Code, save as otherwise provided in the Code, all decisions of the committee of creditors shall be taken by a vote of not less than fifty-one per cent of voting share of the financial creditors.
8. As per provisions of Regulation 25(4) of CIRP Regulations, at the conclusion of voting on the resolution, the decision taken on each of the items along with the names of the Members of the Committee of Creditors who voted for or against the decision, or abstained from voting will be announced.
9. In terms of Regulation 25(5) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016 (**"CIRP Regulations"**), the Interim Resolution Professional shall:
  - a) circulate the minutes of the meeting by electronic means to all members of the committee within forty-eight (48) hours of the conclusion of the meeting; and
  - b) seek a vote of the members who did not vote at the meeting on the matters listed for voting, by electronic voting system in accordance with regulation 26 where the voting shall be kept open for twenty-four (24) hours from the circulation of the minutes (Details of E-voting provided below).
10. As per Section 5(13) of the Code "insolvency resolution process costs" means—
  - a. the amount of any interim finance and the costs incurred in raising such finance;
  - b. the fees payable to any person acting as a resolution professional;
  - c. any costs incurred by the resolution professional in running the business of the corporate debtor as a going concern;
  - d. any costs incurred at the expense of the Government to facilitate the insolvency resolution process; and
  - e. any other costs as may be specified by the Board;
11. As per Regulation 31 of CIRP Regulations, Insolvency resolution process costs under Section 5(13)(e) of the Code shall mean-
  - amounts due to suppliers of essential goods and services under Regulation 32;
  - fee payable to authorised representative under sub-regulation (8) of regulation 16A;
  - out of pocket expenses of authorised representative for discharge of his functions under section 25;
  - amounts due to a person whose rights are prejudicially affected on account of the moratorium imposed under section 14(1)(d);
  - expenses incurred on or by the interim resolution professional to the extent ratified under Regulation 33;
  - expenses incurred on or by the resolution professional fixed under Regulation 34; and
  - other costs directly relating to the corporate insolvency resolution process and approved by the committee.

12. As per Regulation 33 of CIRP Regulations, costs of the interim resolution professional-
- The applicant shall fix the expenses to be incurred on or by the Interim Resolution Professional.
  - The Adjudicating Authority shall fix expenses where the applicant has not fixed expenses under sub-regulation (1).
  - The applicant shall bear the expenses which shall be reimbursed by the committee to the extent it ratifies.
  - The amount of expenses ratified by the committee shall be treated as insolvency resolution process costs.

**Explanation.** - For the purposes of this regulation, “expenses” include the fee to be paid to the resolution professional, fee to be paid to insolvency professional entity, if any, and fee to be paid to professionals, if any, and other expenses to be incurred by the resolution professional.

13. As per Regulation 34 of CIRP Regulations, Resolution Professional Cost-
- The committee shall fix the expenses to be incurred on or by the resolution professional and the expenses shall constitute insolvency resolution process costs.

**Explanation.** - For the purposes of this regulation, “expenses” include the fee to be paid to the resolution professional, fee to be paid to insolvency professional entity, if any, and fee to be paid to professionals, if any, and other expenses to be incurred by the resolution professional.

14. As per Regulation 2 (1) (hb) of CIRP Regulations-“fair value” means the estimated realizable value of the assets of the corporate debtor, if they were to be exchanged on the insolvency commencement date between a willing buyer and a willing seller in an arm’s length transaction, after proper marketing and where the parties had acted knowledgeably, prudently and without compulsion;”

15. As per Regulation 2 (1) (k) of CIRP Regulations- “liquidation value” means the estimated realizable value of the assets of the corporate debtor, if the corporate debtor were to be liquidated on the insolvency commencement date.”

16. As per Section 17 of the IBC 2016, Management of affairs of corporate debtor by interim resolution professional

(1) From the date of appointment of the interim resolution professional, -

(a) the management of the affairs of the corporate debtor shall vest in the interim resolution professional;

(b) the powers of the board of directors or the partners of the corporate debtor, as the case may be, shall stand suspended and be exercised by the interim resolution professional;

(c) the officers and managers of the corporate debtor shall report to the interim resolution professional and provide access to such documents and records of the corporate debtor as may be required by the interim resolution professional;

(d) the financial institutions maintaining accounts of the corporate debtor shall act on the instructions of the interim resolution professional in relation to such accounts and furnish all information relating to the corporate debtor available with them to the interim resolution professional.

(2) The interim resolution professional vested with the management of the corporate debtor, shall- (a) act and execute in the name and on behalf of the corporate debtor all deeds, receipts, and other documents, if any;

(b) take such actions, in the manner and subject to such restrictions, as may be specified by the Board;

(c) have the authority to access the electronic records of corporate debtor from information utility having financial information of the corporate debtor;

(d) have the authority to access the books of account, records and other relevant documents of corporate debtor available with government authorities, statutory auditors, accountants and such other persons as

17. As per Section 18 of the IBC 2016, Duties of interim resolution professional. - The interim resolution professional shall perform the following duties, namely: -

(a) collect all information relating to the assets, finances and operations of the corporate debtor for determining the financial position of the corporate debtor, including information relating to –

(i) business operations for the previous two years;

(ii) financial and operational payments for the previous two years;

(iii) list of assets and liabilities as on the initiation date; and

(iv) such other matters as may be specified;

(b) receive and collate all the claims submitted by creditors to him, pursuant to the public announcement made under sections 13 and 15;

(c) constitute a committee of creditors;

(d) monitor the assets of the corporate debtor and manage its operations until a resolution professional is appointed by the committee of creditors;

(e) file information collected with the information utility, if necessary; and

(f) take control and custody of any asset over which the corporate debtor has ownership rights as recorded in the balance sheet of the corporate debtor, or with information utility

or the depository of securities or any other registry that records the ownership of assets including –

- (i) assets over which the corporate debtor has ownership rights which may be located in a foreign country;
  - (ii) assets that may or may not be in possession of the corporate debtor;
  - (iii) tangible assets, whether movable or immovable;
  - (iv) intangible assets including intellectual property;
  - (v) securities including shares held in any subsidiary of the corporate debtor, financial instruments, insurance policies;
  - (vi) assets subject to the determination of ownership by a court or authority;
- (g) to perform such other duties as may be specified by the Board. Explanation. – For the purposes of this 1 [section], the term “assets” shall not include the following, namely: -
- (a) assets owned by a third party in possession of the corporate debtor held under trust or under contractual arrangements including bailment;
  - (b) assets of any Indian or foreign subsidiary of the corporate debtor; and
  - (c) such other assets as may be notified by the Central Government in consultation with any financial sector regulator.

#### 18. As per Regulation 19 of the IBC 2016

(1) Subject to this Regulation, a meeting of the committee shall be called by giving not less than five days' notice in writing to every participant, at the address it has provided to the interim resolution professional or the resolution professional, as the case may be, and such notice may be sent by hand delivery, or by post but in any event, be served on every participant by electronic means in accordance with Regulation 20.

(2) The committee may reduce the notice period from five days to such other period of not less than twenty-four hours, as it deems fit: Provided that the committee may reduce the period to such other period of not less than forty-eight hours if there is any authorised representative

#### 19. As per section 22(2) of the code 2016, The committee of creditors, may, in the first meeting, by a majority vote of not less than 66 per cent. of the voting share of the financial creditors, either resolve to appoint the interim resolution professional as a resolution professional or to replace the interim resolution professional by another resolution professional.

The following Resolution may be passed with or without modifications:-

#### **DRAFT RESOLUTION**

“RESOLVED THAT pursuant to Section 22 of the Insolvency and Bankruptcy Code, 2016, Mr. Navin Khandelwal, Interim Resolution Professional, be and is hereby appointed as the Resolution Professional of Mahakali Foods Private Limited to conduct and complete the Corporate Insolvency Resolution Process, at a professional fee of ₹1,00,000 (Rupees One Lakh only) per month, plus applicable GST and reimbursement of actual out-of-pocket expenses, subject to the terms approved by the Committee of Creditors.”

*Further Resolved that the COC will make the payment of professional fee of Resolution Professional as per the voting share on monthly basis and such fees shall part of CIRP cost.*

*Further Resolved that the decision to appoint Mr. Navin Khandelwal shall be communicated to the Hon'ble NCLT.”*

The matter is placed before the COC for their consideration and approve by way of voting